

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUOR062019: BERT F. FICKERSON, et al. vs ROBERT M. PERLOW, et al.
05/07/2026 in Department 40
Motion for Preliminary Injunction**

The following is a statement of the court's tentative ruling. The court may adopt, modify or reject the tentative ruling after considering the parties' oral arguments. The tentative ruling will have no legal effect unless adopted by the court.

No notice of intent to appear is required. If you wish to submit on the tentative decision, you may notify the court by email to courtroom40@ventura.courts.ca.gov. Please include the hearing date, the case name and case number in the message. You must include all counsel and self-represented parties on your message. The court will not respond to your email. Do not use this email address for any other purpose without the court's express permission. Do not include the court in any email communications between counsel. Do not call in lieu of sending an email, nor should you call to see if your email has been received. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence.

PLEASE NOTE: The court will not approve any request to appear by Court Call made after 4:00 p.m. on the court day prior to the scheduled hearing.

Plaintiff moves for the issuance of a preliminary injunction. The motion is denied without prejudice.

California Rules of Court, rule 3.1150 provides in part:

(a) Manner of application and service

A party requesting a preliminary injunction may give notice of the request to the opposing or responding party either by serving a noticed motion under Code of Civil Procedure section 1005 or by obtaining and serving an order to show cause (OSC). An OSC must be used when a temporary restraining order (TRO) is sought, or if the party against whom the preliminary injunction is sought has not appeared in the action. If the responding party has not appeared, the OSC must be served in the same manner as a summons and complaint.

Here, Plaintiff seeks a preliminary injunction by motion and has not requested an OSC or a TRO. However, no defendant has appeared in the action so the defendants cannot be properly served with a noticed motion. Plaintiff may renew the request in a manner permitted by the code.